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SUBSECTION 4.7 ENVIROMENTAL CONTROL MEASURES

4.7.1. GENERAL

The purpose of this subsection is to emphasize the need for the environmental control measures required to minimize any adverse environmental impact associated with the Work. The Bidder shall perform his Work in a manner that will comply with the environmental regulations and standards of the Government of Indonesia and local authorities, such as Act No. 23 year 1997 concerning environmental Impact Management, 'Peraturan Menteri Negara Lingkungan Hidup No.21, 2008 tentang Baku Mutu Emisi', Peraturan Menteri Negara Lingkungan Hidup No 08, 2009 tentang Baku Mutu Air Limbah'', Keputusan Menteri Negara Lingkungan Hidup No:KEP-48/MENLH-11-1996 tentang Baku Tingkat Kebisingan (Noise)".

The Owner may monitor the Bidder's activities and the environmental control measures taken by him. Failure on the part of Bidder to enforce environmental control measures or to promptly remedy nonconformance may be cause for the stoppage of Work by the Owner. Such stoppage will be invoked without the granting of time extension to complete the Work or approval of additional payment for delays.

4.7.2. ENVIRONMENTAL CONTROL MEASURES

4.7.2.1 Noise Control

To minimize the noise on and adjacent to the Site, the following measures shall be taken:

- Trucks and other motorized equipment shall be equipped with noise control devices which shall be maintained to meet all applicable noise standards.
- A schedule of signals used by different Bidders for start and finish of work each day and for lunch time will be directed by the Owner.
- Blasting, if required, will be limited to the time and methods approved by the Owner.
- The noise and emission requirements as specified in **Part 4, Subsection 2.9** shall be met.

4.7.2.2 Dust Control

The Bidder shall continually take steps necessary to minimize dust created by all equipment, vehicles, work activities or storage areas. These steps shall include watering roads and work areas. Open bodied trucks handling sand, gravel or earth shall be covered, if the truck is traveling off the site.

The Bidder shall not deposit mud or debris on public roads or adjacent properties.

4.7.2.3 Erosion Control

During the execution of Work at the Site, the Bidder shall constantly monitor his operations to avoid creation of conditions that could lead to excessive erosion of soil with the surface run-off from his work areas. The Bidder shall submit his proposed method of erosion control for the Owner's review and approval.

4.7.2.4 Toxic Substance Control

Toxic and deleterious wastes resulting from the Bidder's construction and other activities require special attention in order to forestall their introduction into the natural environment which could result in harm to people, aquatic life or natural growth of the area, Bidder shall take precautions relative to the conditions specified herein.

Toxic liquids, chemical, fuels, lubricants and bitumen shall be deposited or discharge into containers for salvage or subsequent removal to off-site locations. Care shall be taken to avoid the storage or handling of toxic liquid adjacent to or draining into drainage facilities. Fuels, chemicals and lubricant in tanks should be maintained or located in a lined pit of sufficient volume to hold the entire contents of the tank

Washing out of concrete transport trucks shall be performed on the site in a designated control area to discharge the effluent into a settling pond.

Supplies of absorbent materials or compounds shall be kept on Site in sufficient quantities corresponding to the extent of possible spills. Other means of containing oil spill on Site shall include oil booms, as required.

The Bidder shall take adequate precaution to limit the disturbance of the environment to the minimum extent possible.

4.7.2.5 Traffic Control

The Owner will furnish traffic control regulations to the Bidder after the award of the Contract. The Bidder shall comply with and shall be responsible for the compliance of his subBidders with the Site traffic control requirements.

(Last page of Subsection 4.7)